

Due Process Step-by-Step Guide

Everything You Need to Know Before, During, and After a Due Process Hearing

Knowledge is power. Partnership is progress. Together — the IEP gets APPROVED.

What Is Due Process?

Due process is a formal legal proceeding that allows parents and school districts to resolve disputes about special education. It is one of three dispute resolution options under IDEA — the others being mediation and state complaint. Due process results in a binding decision made by an impartial hearing officer.

Important: Due process should be a last resort after good faith attempts at resolution have failed. It is time-consuming, stressful, and expensive. However, knowing the process gives you leverage even if you never file — and knowing your rights changes the conversation.

STEP 1

Attempt Informal Resolution First

Before filing, document all attempts to resolve the dispute informally. Request an IEP meeting. Put your concerns in writing. Ask for a response in writing. This documentation is important if you do file.

■ IDEA 34 CFR § 300.506

STEP 2

Consider Mediation

Mediation is voluntary, confidential, and free. A neutral mediator helps both parties reach agreement. If successful, the agreement is legally binding. Mediation does not prevent you from filing for due process.

■ IDEA 34 CFR § 300.506

STEP 3

File the Due Process Complaint

Your complaint must be in writing and include: your child's name and address, school name, description of the problem, and your proposed resolution. File with your State Education Agency. The school district must receive a copy.

■ IDEA 34 CFR § 300.508

STEP 4

Resolution Period (30 days)

Within 15 days of your complaint, the school must convene a resolution meeting with you and relevant IEP team members. If the dispute is resolved, a written agreement is executed. If not resolved within 30 days, the hearing may proceed.

■ IDEA 34 CFR § 300.510

STEP 5

Pre-Hearing Preparation

Gather all evidence: IEPs, evaluations, emails, meeting notes, progress reports. Organize chronologically. Consider consulting a special education attorney or advocate. Prepare your witnesses.

■ IDEA 34 CFR § 300.512

STEP 6

The Due Process Hearing

Both parties present evidence and witnesses before an impartial hearing officer. You have the right to be accompanied by counsel, present evidence, confront and cross-examine witnesses, and prohibit introduction of undisclosed evidence.

■ IDEA 34 CFR § 300.512

STEP 7

The Decision

The hearing officer must issue a written decision within 45 days of the expiration of the resolution period. The decision is binding unless appealed.

■ IDEA 34 CFR § 300.515

STEP 8

Appeals

Either party may appeal to the State Educational Agency (two-tier states) or to federal or state court (single-tier states). You typically have 90 days to file an appeal.

■ *IDEA 34 CFR § 300.516*

Key Due Process Rights

- Right to remain in current placement during proceedings ("stay put" — 20 U.S.C. § 1415(j))
- Right to an impartial hearing officer with no personal or professional interest in the outcome
- Right to be represented by an attorney or non-attorney advocate
- Right to access all school records and evaluations
- Right to a written decision with findings of fact and conclusions of law
- Right to appeal the decision
- Right to recover attorney's fees if you prevail (20 U.S.C. § 1415(i)(3))

Should You Get an Attorney?

For complex disputes involving significant changes in placement, denial of services, or pattern violations, a special education attorney can be invaluable. Many work on contingency for IDEA cases. If you prevail in due process, the school district may be required to pay your attorney's fees.

Ask Ada to help you find special education attorneys in your state at iepapproved.com/ada